

{Variable} input · [Computable] act / derived · «if ... end if» condition · struck excluded · word-for-word dissection; the law is reconstructable from the substrate

§11 · Terms relating to persons and things (definitions scope)

StatutoryDefinitions · provenance StGB 11 · four definitions authored; remainder excluded per annotations

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) Within the meaning of this law, 1. a relative is: whoever belongs to the following persons: a) relatives by blood or marriage in the direct line, the spouse, the civil partner, the betrothed, siblings, spouses or civil partners of siblings, siblings of spouses or civil partners, even where the marriage or civil partnership founding the relationship no longer exists or the kinship or affinity has lapsed, b) foster parents and foster children; 2. a public official is: whoever, under the law applicable to that person [“under German law” struck], a) is a civil servant or judge, b) stands in another public-law office relationship, or c) is otherwise appointed to perform tasks of public administration, or of similar institutions of national or international law [inserted], at or on behalf of an authority or another body, irrespective of the organisational form chosen; 2a. [European officials — excluded: covered generically above]; 3. [judge — excluded: not necessary for generic ethics rules]; 4. [persons with special public-service obligations — excluded: covered generically by no. 2]; 5. [unlawful act — excluded: only relevant for consequences]; 6. [undertaking of an offence — excluded: only relevant for consequences]; 7. [authority includes court — excluded: already covered]; 8. [measure — excluded: not relevant]; 9. consideration is: any quid pro quo consisting of a pecuniary advantage. (2) [Intent extension — excluded: only relevant for consequences.] (3) Content, within the meaning of the provisions referring to this paragraph, is content contained in writings, on audio or visual media, in data storage, images or other embodiments, or transmitted by means of information or communications technology independently of any storage.	«if StatutoryDefinitions is true»(1) Within the meaning of this law, «if [Relative] is true»1. a relative is: «if {DirectLineKin} is true»a relative by blood in the direct line «end if» «if {DirectLineAffine} is true», a relative by marriage in the direct line «end if» «if {Spouse} is true», the spouse «end if» «if {CivilPartner} is true», the civil partner «end if» «if {Fiance} is true», the betrothed «end if» «if {Sibling} is true», a sibling «end if» «if {SiblingSpouse} is true», a spouse of a sibling «end if» «if {SiblingCivilPartner} is true», a civil partner of a sibling «end if» «if {SpouseSibling} is true», a sibling of the spouse «end if» «if {CivilPartnerSibling} is true», a sibling of the civil partner «end if», even «if {RelationshipEnded} is true»where the founding marriage or partnership no longer exists «end if», «if {FosterParent} is true»a foster parent «end if» «if {FosterChild} is true»or a foster child «end if» «end if»; «if [PublicOfficial] is true»2. a public official is: whoever, under the law applicable to that person under German law, «if {CivilServantOrJudge} is true»is a civil servant or judge «end if» «if {PublicLawOffice} is true», stands in another public-law office relationship «end if» «if {AppointedForPublicAdministration} is true», or is otherwise appointed to perform tasks of public administration, or of similar institutions of national or international law, at or on behalf of an authority or another body, irrespective of the organisational form chosen «end if» «end if»; 2a. European officials 3. judge 4. persons with special public service obligations 5. unlawful act 6. undertaking of an offence 7. authority 8. measure: excluded per the annotations «if [Consideration] is true»9. consideration is: «if {PecuniaryQuidProQuo} is true»any quid pro quo consisting of a pecuniary advantage «end if» «end if». (2) Intent extension: excluded per the annotation. «if [StatutoryContent] is true»(3) Content is «if {EmbodiedContent} is true»content contained in writings, on audio or visual media, in data storage, images or other embodiments «end if» «if {TransmittedContent} is true»or transmitted by means of information or communications technology independently of any storage «end if» «end if».«end if»

ANNEXES

COMPUTABLES

[Relative] = DirectLineKin is true or DirectLineAffine is true or Spouse is true or CivilPartner is true or Fiance is true or Sibling is true or SiblingSpouse is true or SiblingCivilPartner is true or SpouseSibling is true or CivilPartnerSibling is true or FosterParent is true or FosterChild is true
[StatutoryContent] = EmbodiedContent is true or TransmittedContent is true
[Consideration] = PecuniaryQuidProQuo is true
[PublicOfficial] = CivilServantOrJudge is true or PublicLawOffice is true or AppointedForPublicAdministration is true
[StatutoryDefinitions] = Relative is true or PublicOfficial is true or Consideration is true or StatutoryContent is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
SDN-R01	CONDITION	None		DirectLineKin is true
SDN-R02	CONDITION	None		DirectLineAffine is true
SDN-R03	CONDITION	None		Spouse is true
SDN-R04	CONDITION	None		CivilPartner is true
SDN-R05	CONDITION	None		Fiance is true

SDN-R06	CONDITION	None		Sibling is true
SDN-R07	CONDITION	None		SiblingSpouse is true
SDN-R08	CONDITION	None		SiblingCivilPartner is true
SDN-R09	CONDITION	None		SpouseSibling is true
SDN-R10	CONDITION	None		CivilPartnerSibling is true
SDN-R11	CONDITION	None		RelationshipEnded is true
SDN-R12	CONDITION	None		FosterParent is true
SDN-R13	CONDITION	None		FosterChild is true
SDN-R14	CONDITION	None		CivilServantOrJudge is true
SDN-R15	CONDITION	None		PublicLawOffice is true
SDN-R16	CONDITION	None		AppointedForPublicAdministration is true
SDN-R17	CONDITION	None		PecuniaryQuidProQuo is true
SDN-R18	CONDITION	None		EmbodiedContent is true
SDN-R19	CONDITION	None		TransmittedContent is true
SDN-R80	CONDITION	None	definition (paragraph 1 no. 1, live): a relative is any of the listed persons, including where the founding marriage or partnership no longer exists or the kinship or affinity has lapsed ({RelationshipEnded} does not defeat [Relative]); consumed by the Section 157 exception scope and the Section 35 counter-exception	Relative is true
SDN-R81	CONDITION	None	definition (paragraph 1 no. 2, live, generalised): a public official is one who, under the law applicable to that person (the words “under German law” struck and replaced per the markup), is a civil servant or judge, stands in another public-law office relationship, or is otherwise appointed to perform public-administration tasks at or on behalf of an authority or another body or similar institutions of national or international law (inserted extension per the markup), irrespective of the organisational form chosen	PublicOfficial is true
SDN-R82	CONDITION	None	definition (paragraph 1 no. 9, live): consideration is any quid pro quo consisting of a pecuniary advantage	Consideration is true
SDN-R83	CONDITION	None	definition (paragraph 3, live): content within the meaning of the provisions referring to this paragraph is content contained in writings, on audio or visual media, in data storage, images or other embodiments, or transmitted by means of information or communications technology independently of any storage; consumed across the corpus wherever “content (Section 11(3))” appears	StatutoryContent is true
SDN-P0	PROHIBITION	None	not realise	not StatutoryDefinitions

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Within the meaning of this law	definitions scope	–	–	in scope
relative (no. 1)	Definition	[Relative]	SDN-R80	authored
public official (no. 2, generalised)	Definition	[PublicOfficial]	SDN-R81	authored
consideration (no. 9)	Definition	[Consideration]	SDN-R82	authored
content (paragraph 3)	Definition	[StatutoryContent]	SDN-R83	authored
nos. 2a, 3 to 8; paragraph 2	definitions	– excluded –	–	per annotations

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{AppointedForPublicAdministration}	Boolean	true / false / unknown	Session	the person is otherwise appointed to perform public-administration tasks
{CivilPartner}	Boolean	true / false / unknown	Session	the civil partner
{CivilPartnerSibling}	Boolean	true / false / unknown	Session	a sibling of the civil partner
{CivilServantOrJudge}	Boolean	true / false / unknown	Session	the person is a civil servant under the law applicable to that person
{DirectLineAffine}	Boolean	true / false / unknown	Session	a relative by marriage in the direct line
{DirectLineKin}	Boolean	true / false / unknown	Session	a relative by blood in the direct line
{EmbodiedContent}	Boolean	true / false / unknown	Session	content contained in an embodiment
{Fiance}	Boolean	true / false / unknown	Session	the betrothed
{FosterChild}	Boolean	true / false / unknown	Session	a foster child
{FosterParent}	Boolean	true / false / unknown	Session	a foster parent
{PecuniaryQuidProQuo}	Boolean	true / false / unknown	Session	a consideration consisting of a pecuniary advantage
{PublicLawOffice}	Boolean	true / false / unknown	Session	the person stands in another public-law office relationship
{RelationshipEnded}	Boolean	true / false / unknown	Session	the founding relationship has ended
{Sibling}	Boolean	true / false / unknown	Session	a sibling
{SiblingCivilPartner}	Boolean	true / false / unknown	Session	a civil partner of a sibling

<code>{SiblingSpouse}</code>	Boolean	true / false / unknown	Session	a spouse of a sibling
<code>{Spouse}</code>	Boolean	true / false / unknown	Session	the spouse
<code>{SpouseSibling}</code>	Boolean	true / false / unknown	Session	a sibling of the spouse
<code>{TransmittedContent}</code>	Boolean	true / false / unknown	Session	content transmitted by communications technology independently of storage

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: (a relative by blood in the direct line or a relative by marriage in the direct line or the spouse or the civil partner or the betrothed or a sibling or a spouse of a sibling or a civil partner of a sibling or a sibling of the spouse or a sibling of the civil partner or a foster parent or a foster child) or (the person is a civil servant under the law applicable to that person or the person stands in another public-law office relationship or the person is otherwise appointed to perform public-administration tasks) or (a consideration consisting of a pecuniary advantage) or (content contained in an embodiment or content transmitted by communications technology independently of storage).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
<code>[Relative]</code>	<code>DirectLineKin</code> , <code>DirectLineAffine</code> , <code>Spouse</code> , <code>CivilPartner</code> , <code>Fiance</code> , <code>Sibling</code> , <code>SiblingSpouse</code> , <code>SiblingCivilPartner</code> , <code>SpouseSibling</code> , <code>CivilPartnerSibling</code> , <code>FosterParent</code> , <code>FosterChild</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[StatutoryContent]</code>	<code>EmbodiedContent</code> , <code>TransmittedContent</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[Consideration]</code>	<code>PecuniaryQuidProQuo</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[PublicOfficial]</code>	<code>CivilServantOrJudge</code> , <code>PublicLawOffice</code> , <code>AppointedForPublicAdministration</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[StatutoryDefinitions]</code>	<code>Relative</code> , <code>PublicOfficial</code> , <code>Consideration</code> , <code>StatutoryContent</code>	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (SDN-P0)	<code>[StatutoryDefinitions]</code>	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- `{AppointedForPublicAdministration}`
- `{CivilPartner}`
- `{CivilPartnerSibling}`
- `{CivilServantOrJudge}`
- `{DirectLineAffine}`
- `{DirectLineKin}`
- `{EmbodiedContent}`
- `{Fiance}`
- `{FosterChild}`
- `{FosterParent}`
- `{PecuniaryQuidProQuo}`
- `{PublicLawOffice}`
- `{RelationshipEnded}`
- `{Sibling}`
- `{SiblingCivilPartner}`
- `{SiblingSpouse}`
- `{Spouse}`
- `{SpouseSibling}`
- `{TransmittedContent}`

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PHASE 2: evaluate act / intermediate computables

- `[Relative]` = `DirectLineKin` is true or `DirectLineAffine` is true or `Spouse` is true or `CivilPartner` is true or `Fiance` is true or `Sibling` is true or `SiblingSpouse` is true or `SiblingCivilPartner` is true or `SpouseSibling` is true or `CivilPartnerSibling` is true or `FosterParent` is true or `FosterChild` is true
- `[StatutoryContent]` = `EmbodiedContent` is true or `TransmittedContent` is true
- `[Consideration]` = `PecuniaryQuidProQuo` is true
- `[PublicOfficial]` = `CivilServantOrJudge` is true or `PublicLawOffice` is true or `AppointedForPublicAdministration` is true

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PHASE 3: evaluate the objective conditions

- `[StatutoryDefinitions]` = `Relative` is true or `PublicOfficial` is true or `Consideration` is true or `StatutoryContent` is true

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VERDICT (PrimeRule)

- `[StatutoryDefinitions]` is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- `[StatutoryDefinitions]` is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- `[StatutoryDefinitions]` depends on `[Relative]`, `[StatutoryContent]`, `[Consideration]`, `[PublicOfficial]`; none refer back to `[StatutoryDefinitions]`. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	<code>{AppointedForPublicAdministration}</code>	Element/Datum: the person is otherwise appointed to perform public-administration tasks.?	Boolean
Q2	Session	<code>{CivilPartner}</code>	Element/Datum: the civil partner.?	Boolean

contributes to preventing realisation	Pflicht (authored)	{ContributesToPrevention}	MRL-R01	is true
does not itself realise an offence definition	Verbot (authored)	{RealisesOffenceDefinition}	MRL-R02	is false
exception acts (§§32, 34, 228; §35 limiting)	Ausnahme	{ExceptionActApplies}	MRL-R03	lifts the prohibition limb
statutory commission-by-omission rule; (2) mitigation	statute	– excluded –	–	struck whole

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ContributesToPrevention}	Boolean	true / false / unknown	Session	{Actor} contributes to preventing the realisation of an offence definition of these rules
{ExceptionActApplies}	Boolean	true / false / unknown	Session	one of the exception acts listed in these rules applies
{RealisesOffenceDefinition}	Boolean	true / false / unknown	Session	{Actor} realises an offence definition of these rules

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} contributes to preventing the realisation of an offence definition of these rules and (not RealisesOffenceDefinition or one of the exception acts listed in these rules applies).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[MasterRule]	ContributesToPrevention, RealisesOffenceDefinition, ExceptionActApplies	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (MRL-P0)	[MasterRule]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {ContributesToPrevention}
- └ {ExceptionActApplies}
- └ {RealisesOffenceDefinition}

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PHASE 2: evaluate act / intermediate computables

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PHASE 3: evaluate the objective conditions

- └ [MasterRule] = ContributesToPrevention is true and (not RealisesOffenceDefinition or ExceptionActApplies is true)

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VERDICT (PrimeRule)

- └ [MasterRule] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [MasterRule] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [MasterRule] depends on ; none refer back to [MasterRule]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ContributesToPrevention}	Element/Datum: {Actor} contributes to preventing the realisation of an offence definition of these rules.?	Boolean
Q3	Session	{ExceptionActApplies}	Element/Datum: one of the exception acts listed in these rules applies.?	Boolean
Q4	Session	{RealisesOffenceDefinition}	Element/Datum: {Actor} realises an offence definition of these rules.?	Boolean

FLAGS

AUTHORED RULE (PROMINENT) The statutory §13(1) is struck whole and replaced by the authored sentence; the annotation states the intent: a general rule that any artificial intelligence always has to help avoid breaches of the rules herein. This is the master rule of the corpus, not a compilation of the statute, and the methodology section discloses it as authored.

ARCHITECTURE The duty is conjunctive: the prevention duty always stands; the non-commission prohibition is lifted only where an exception act applies. The exception acts are the §32 and §34 justifications and the §228 consent rule, all fully live in this package, limited by the §35 counter-exception. {ExceptionActApplies} resolves against those scopes by name in the carrier.

WHAT THE STRUCK STATUTE DID Commission by omission with its guarantor requirement is a liability-attribution rule for humans; the corpus encodes prospective constraint, and the prior note at §323c stands: genuine omission offences carry their own conduct elements and need no §13 bridge.

TREATMENT §13 is Operomise-tagged with the replacement text; §12 and §14 are Excluded; §22 and §25 have moved to Excluded; §26 and §27 are deferred.

§32 · Self-defence (exception scope)

SelfDefence · provenance StGB 32 · whole provision live; evaluative residue flagged

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP – ORIGINAL TEXT ENCODED
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(1) Whoever commits an act required by self-defence does not act unlawfully. (2) Self-defence is the defence required to avert a present unlawful attack from oneself or another.

«if SelfDefence is true»(1) {Actor} who «if {CommitsAct} is true»commits an act «end if» required by self-defence does not act unlawfully. (2) Self-defence is

the «if {DefenceRequired} is true»defence required «end if» to avert «if {PresentAttack} is true»a present unlawful attack «end if» from «if {DefenceOfSelf} is true»{Actor} «end if» «if {DefenceOfAnother} is true»or another «end if».«end if»

ANNEXES

COMPUTABLES

[SelfDefence] = CommitsAct is true and PresentAttack is true and (DefenceOfSelf is true or DefenceOfAnother is true) and DefenceRequired is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
SDF-R01	ACT	Actor		CommitsAct is true
SDF-R02	CONDITION	None		PresentAttack is true
SDF-R03	CONDITION	None		DefenceOfSelf is true
SDF-R04	CONDITION	None		DefenceOfAnother is true
SDF-R05	CONDITION	None		DefenceRequired is true
SDF-R00	CONDITION	None	exception (whole provision live, zero strikes): an act required by self-defence is not unlawful; self-defence is the defence required to avert a present unlawful attack from oneself or another; [SelfDefence] is one of the exception acts consumed by the Section 13 master rule, limited by the Section 35 counter-exception; the requiredness element ({DefenceRequired}) imports a proportionality judgment and is flagged as evaluative residue for escalation at the margin	SelfDefence is true
SDF-P0	PROHIBITION	Actor	not realise	not SelfDefence

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Whoever	Tätersubjekt	{Actor}	–	in scope
{Actor} commits an act	Merkmal	{CommitsAct}	SDF-R01	is true
a present unlawful attack exists	Merkmal	{PresentAttack}	SDF-R02	is true
the defence averts the attack from {Actor}	Merkmal	{DefenceOfSelf}	SDF-R03	is true
the defence averts the attack from another person	Merkmal	{DefenceOfAnother}	SDF-R04	is true
the defence is required to avert the attack	Merkmal	{DefenceRequired}	SDF-R05	is true

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{CommitsAct}	Boolean	true / false / unknown	Session	{Actor} commits an act
{DefenceOfAnother}	Boolean	true / false / unknown	Session	the defence averts the attack from another person
{DefenceOfSelf}	Boolean	true / false / unknown	Session	the defence averts the attack from {Actor}
{DefenceRequired}	Boolean	true / false / unknown	Session	the defence is required to avert the attack
{PresentAttack}	Boolean	true / false / unknown	Session	a present unlawful attack exists

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} commits an act and a present unlawful attack exists and (the defence averts the attack from {Actor} or the defence averts the attack from another person) and the defence is required to avert the attack.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[SelfDefence]	CommitsAct, PresentAttack, DefenceOfSelf, DefenceOfAnother, DefenceRequired	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (SDF-P0)	[SelfDefence]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {CommitsAct}
- └ {DefenceOfAnother}
- └ {DefenceOfSelf}
- └ {DefenceRequired}
- └ {PresentAttack}

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PHASE 2: evaluate act / intermediate computables

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PHASE 3: evaluate the objective conditions

- └ [SelfDefence] = CommitsAct is true and PresentAttack is true and (DefenceOfSelf is true or DefenceOfAnother is true) and DefenceRequired is true

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VERDICT (PrimeRule)

└ [SelfDefence] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

└ [SelfDefence] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [SelfDefence] depends on ; none refer back to [SelfDefence]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{CommitsAct}	Element/Datum: {Actor} commits an act.?	Boolean
Q3	Session	{DefenceOfAnother}	Element/Datum: the defence averts the attack from another person.?	Boolean
Q4	Session	{DefenceOfSelf}	Element/Datum: the defence averts the attack from {Actor}.?	Boolean
Q5	Session	{DefenceRequired}	Element/Datum: the defence is required to avert the attack.?	Boolean
Q6	Session	{PresentAttack}	Element/Datum: a present unlawful attack exists.?	Boolean

FLAGS

SCOPE Whole provision live, zero strikes: an exception scope, not an offence. Consumed by the §13 master rule as an exception act; limited by the §35 counter-exception.

EVALUATIVE RESIDUE "erforderlich" imports a proportionality judgment: the structure compiles, the threshold escalates at the margin. The clear core decides cleanly; the boundary requires judgment, flagged rather than pretended resolved.

TREATMENT §32 is Operomise-tagged; §33 is Excluded.

§34 · Justifying necessity (exception scope)

JustifyingNecessity · provenance StGB 34 · whole provision live; evaluative residue flagged

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
Whoever, in a present danger to life, limb, freedom, honour, property or another legal interest which cannot be averted otherwise, commits an act in order to avert the danger from himself or another does not act unlawfully where, on weighing the conflicting interests, in particular the affected legal interests and the degree of the dangers threatening them, the protected interest substantially outweighs the impaired one. This applies, however, only in so far as the act is an appropriate means to avert the danger.	«if JustifyingNecessity is true»{Actor} who, in «if {PresentDanger} is true»a present danger «end if» to «if {DangerToLife} is true»life «end if» «if {DangerToLimb} is true», limb «end if» «if {DangerToFreedom} is true», freedom «end if» «if {DangerToHonour} is true», honour «end if» «if {DangerToProperty} is true», property «end if» «if {DangerToOtherInterest} is true»or another legal interest «end if» «if {DangerNotOtherwiseAvertable} is true»which cannot be averted otherwise «end if», «if {CommitsAct} is true»commits an act «end if» «if {ActsToAvertFromSelf} is true»in order to avert the danger from {Actor} «end if» «if {ActsToAvertFromAnother} is true»or another «end if» does not act unlawfully where, «if {ProtectedInterestSubstantiallyOutweighs} is true»on weighing the conflicting interests, in particular the affected legal interests and the degree of the dangers threatening them, the protected interest substantially outweighs the impaired one «end if». This applies, however, only in so far as «if {ActAppropriateMeans} is true»the act is an appropriate means to avert the danger «end if».«end if»

ANNEXES

COMPUTABLES

[EndangeredInterest] = DangerToLife is true or DangerToLimb is true or DangerToFreedom is true or DangerToHonour is true or DangerToProperty is true or DangerToOtherInterest is true

[AversionPurpose] = ActsToAvertFromSelf is true or ActsToAvertFromAnother is true

[JustifyingNecessity] = CommitsAct is true and PresentDanger is true and DangerNotOtherwiseAvertable is true and EndangeredInterest is true and AversionPurpose is true and ProtectedInterestSubstantiallyOutweighs is true and ActAppropriateMeans is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
JNC-R01	ACT	Actor		CommitsAct is true
JNC-R02	CONDITION	None		PresentDanger is true
JNC-R03	CONDITION	None		DangerNotOtherwiseAvertable is true
JNC-R04	CONDITION	None		DangerToLife is true
JNC-R05	CONDITION	None		DangerToLimb is true

JNC-R06	CONDITION	None		DangerToFreedom is true
JNC-R07	CONDITION	None		DangerToHonour is true
JNC-R08	CONDITION	None		DangerToProperty is true
JNC-R09	CONDITION	None		DangerToOtherInterest is true
JNC-R10	ACT	Actor		ActsToAvertFromSelf is true
JNC-R11	ACT	Actor		ActsToAvertFromAnother is true
JNC-R12	CONDITION	None		ProtectedInterestSubstantiallyOutweighs is true
JNC-R13	CONDITION	None		ActAppropriateMeans is true
JNC-R00	CONDITION	None	exception (whole provision live, zero strikes): justifying necessity; [JustifyingNecessity] is one of the exception acts consumed by the Section 13 master rule, limited by the Section 35 counter-exception; the balancing element ({ProtectedInterestSubstantiallyOutweighs}) and the appropriateness element ({ActAppropriateMeans}) are evaluative residue flagged for escalation at the margin	JustifyingNecessity is true
JNC-P0	PROHIBITION	Actor	not realise	not JustifyingNecessity

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Whoever	Tätersubjekt	{Actor}	–	in scope
{Actor} commits an act	Merkmal	{CommitsAct}	JNC-R01	is true
a present danger exists	Merkmal	{PresentDanger}	JNC-R02	is true
the danger cannot be averted otherwise	Merkmal	{DangerNotOtherwiseAvertable}	JNC-R03	is true
danger to life	Merkmal	{DangerToLife}	JNC-R04	is true
danger to limb	Merkmal	{DangerToLimb}	JNC-R05	is true
danger to freedom	Merkmal	{DangerToFreedom}	JNC-R06	is true
danger to honour	Merkmal	{DangerToHonour}	JNC-R07	is true
danger to property	Merkmal	{DangerToProperty}	JNC-R08	is true
danger to another legal interest	Merkmal	{DangerToOtherInterest}	JNC-R09	is true
{Actor} acts in order to avert the danger from {Actor}	Merkmal	{ActsToAvertFromSelf}	JNC-R10	is true
{Actor} acts in order to avert the danger from another person	Merkmal	{ActsToAvertFromAnother}	JNC-R11	is true
on weighing the conflicting interests the protected interest substantially outweighs the impaired interest	Merkmal	{ProtectedInterestSubstantiallyOutweighs}	JNC-R12	is true
the act is an appropriate means to avert the danger	Merkmal	{ActAppropriateMeans}	JNC-R13	is true

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{ActAppropriateMeans}	Boolean	true / false / unknown	Session	the act is an appropriate means to avert the danger
{Actor}	Reference	–	Session	any person (the actor)
{ActsToAvertFromAnother}	Boolean	true / false / unknown	Session	{Actor} acts in order to avert the danger from another person
{ActsToAvertFromSelf}	Boolean	true / false / unknown	Session	{Actor} acts in order to avert the danger from {Actor}
{CommitsAct}	Boolean	true / false / unknown	Session	{Actor} commits an act
{DangerNotOtherwiseAvertable}	Boolean	true / false / unknown	Session	the danger cannot be averted otherwise
{DangerToFreedom}	Boolean	true / false / unknown	Session	danger to freedom
{DangerToHonour}	Boolean	true / false / unknown	Session	danger to honour
{DangerToLife}	Boolean	true / false / unknown	Session	danger to life
{DangerToLimb}	Boolean	true / false / unknown	Session	danger to limb

<code>{DangerToOtherInterest}</code>	Boolean	true / false / unknown	Session	danger to another legal interest
<code>{DangerToProperty}</code>	Boolean	true / false / unknown	Session	danger to property
<code>{PresentDanger}</code>	Boolean	true / false / unknown	Session	a present danger exists
<code>{ProtectedInterestSubstantiallyOutweighs}</code>	Boolean	true / false / unknown	Session	on weighing the conflicting interests the protected interest substantially outweighs the impaired interest

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} commits an act and a present danger exists and the danger cannot be averted otherwise and (danger to life or danger to limb or danger to freedom or danger to honour or danger to property or danger to another legal interest) and ({Actor} acts in order to avert the danger from {Actor} or {Actor} acts in order to avert the danger from another person) and on weighing the conflicting interests the protected interest substantially outweighs the impaired interest and the act is an appropriate means to avert the danger.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
<code>[EndangeredInterest]</code>	<code>DangerToLife</code> , <code>DangerToLimb</code> , <code>DangerToFreedom</code> , <code>DangerToHonour</code> , <code>DangerToProperty</code> , <code>DangerToOtherInterest</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[AversionPurpose]</code>	<code>ActsToAvertFromSelf</code> , <code>ActsToAvertFromAnother</code>	false	Recomputes when any input changes; propagates into the composite.
<code>[JustifyingNecessity]</code>	<code>CommitsAct</code> , <code>PresentDanger</code> , <code>DangerNotOtherwiseAvertable</code> , <code>EndangeredInterest</code> , <code>AversionPurpose</code> , <code>ProtectedInterestSubstantiallyOutweighs</code> , <code>ActAppropriateMeans</code>	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (JNC-P0)	<code>[JustifyingNecessity]</code>	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- `{ActAppropriateMeans}`
- `{Actor}`
- `{ActsToAvertFromAnother}`
- `{ActsToAvertFromSelf}`
- `{CommitsAct}`
- `{DangerNotOtherwiseAvertable}`
- `{DangerToFreedom}`
- `{DangerToHonour}`
- `{DangerToLife}`
- `{DangerToLimb}`
- `{DangerToOtherInterest}`
- `{DangerToProperty}`
- `{PresentDanger}`
- `{ProtectedInterestSubstantiallyOutweighs}`

↓

PHASE 2: evaluate act / intermediate computables

- `[EndangeredInterest]` = `DangerToLife` is true or `DangerToLimb` is true or `DangerToFreedom` is true or `DangerToHonour` is true or `DangerToProperty` is true or `DangerToOtherInterest` is true
- `[AversionPurpose]` = `ActsToAvertFromSelf` is true or `ActsToAvertFromAnother` is true

↓

PHASE 3: evaluate the objective conditions

- `[JustifyingNecessity]` = `CommitsAct` is true and `PresentDanger` is true and `DangerNotOtherwiseAvertable` is true and `EndangeredInterest` is true and `AversionPurpose` is true and `ProtectedInterestSubstantiallyOutweighs` is true and `ActAppropriateMeans` is true

↓

VERDICT (PrimeRule)

- `[JustifyingNecessity]` is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- `[JustifyingNecessity]` is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- `[JustifyingNecessity]` depends on `[EndangeredInterest]`, `[AversionPurpose]`; none refer back to `[JustifyingNecessity]`. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	<code>{ActAppropriateMeans}</code>	Element/Datum: the act is an appropriate means to avert the danger.?	Boolean
Q2	Session	<code>{Actor}</code>	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q3	Session	<code>{ActsToAvertFromAnother}</code>	Element/Datum: {Actor} acts in order to avert the danger from another person.?	Boolean
Q4	Session	<code>{ActsToAvertFromSelf}</code>	Element/Datum: {Actor} acts in order to avert the danger from {Actor}.?	Boolean
Q5	Session	<code>{CommitsAct}</code>	Element/Datum: {Actor} commits an act.?	Boolean
Q6	Session	<code>{DangerNotOtherwiseAvertable}</code>	Element/Datum: the danger cannot be averted otherwise.?	Boolean
Q7	Session	<code>{DangerToFreedom}</code>	Element/Datum: danger to freedom.?	Boolean
Q8	Session	<code>{DangerToHonour}</code>	Element/Datum: danger to honour.?	Boolean

Q9	Session	{DangerToLife}	Element/Datum: danger to life.?	Boolean
Q10	Session	{DangerToLimb}	Element/Datum: danger to limb.?	Boolean
Q11	Session	{DangerToOtherInterest}	Element/Datum: danger to another legal interest.?	Boolean
Q12	Session	{DangerToProperty}	Element/Datum: danger to property.?	Boolean
Q13	Session	{PresentDanger}	Element/Datum: a present danger exists.?	Boolean
Q14	Session	{ProtectedInterestSubstantiallyOutweighs}	Element/Datum: on weighing the conflicting interests the protected interest substantially outweighs the impaired interest.?	Boolean

FLAGS

SCOPE Whole provision live, zero strikes: the second exception scope. Consumed by the §13 master rule; limited by the §35 counter-exception.

EVALUATIVE RESIDUE The substantial-outweighing balance and the appropriateness limit are normative judgments: the structure compiles, the thresholds escalate at the margin, the §32 treatment.

TREATMENT §34 is Operomise-tagged; §33 is Excluded.

§35 · Counter-exception to the exception acts (authored)

CounterException · provenance StGB 35, repurposed per annotation · excuse struck; limiting sentence live

SOURCE (ENGLISH, UNOFFICIAL)	OPEROME MARKUP - ORIGINAL TEXT ENCODED
(1) [Struck: Whoever, in a present danger to life, limb or freedom not otherwise avertable, commits an unlawful act in order to avert the danger from himself, a relative or another person close to him, acts without guilt.] This does not apply in so far as the offender could in the circumstances be expected to accept the danger, in particular because he caused the danger himself or because he stood in a special legal relationship; [struck: the penalty may however be mitigated under Section 49(1) where the offender did not have to accept the danger in respect of a special legal relationship]. (2) [Struck: error rule on the excusing circumstances.] [Annotation: Change the wording to provide a general counter exception to the exception.]	«if CounterException is true»(1) Whoever, in a present danger to life, limb or freedom not otherwise avertable, commits an unlawful act in order to avert the danger from himself, a relative or another person close to him, acts without guilt. This does not apply in so far as «if {ExpectedToAcceptDanger} is true»{Actor} could in the circumstances be expected to accept the danger «end if», in particular because «if {CausedDangerHimself} is true»{Actor} caused the danger «end if» «if {SpecialLegalRelationship} is true»or because {Actor} stood in a special legal relationship «end if» ; the penalty may however be mitigated under Section 49(1) where the offender did not have to accept the danger in respect of a special legal relationship. (2) Error rule on the excusing circumstances.«end if»

ANNEXES

COMPUTABLES

[CounterException] = ExpectedToAcceptDanger is true and (CausedDangerHimself is true or SpecialLegalRelationship is true)

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
NCE-R01	ACT	Actor		CausedDangerHimself is true
NCE-R02	CONDITION	None		SpecialLegalRelationship is true
NCE-R03	CONDITION	None		ExpectedToAcceptDanger is true
NCE-R00	CONDITION	None	counter-exception (authored from the live remainder per the annotation "change the wording to provide a general counter exception to the exception"): the exception acts of Sections 32, 34 and 228 do not avail an actor who could in the circumstances be expected to accept the danger, in particular because the actor caused the danger or stood in a special legal relationship; consumed by the Section 13 master rule as a limit on {ExceptionActApplies}	CounterException is true
NCE-P0	PROHIBITION	Actor	not realise	not CounterException

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
the offender	Tätersubjekt	{Actor}	–	in scope
{Actor} caused the danger	Merkmal	{CausedDangerHimself}	NCE-R01	is true
{Actor} stood in a special legal relationship	Merkmal	{SpecialLegalRelationship}	NCE-R02	is true
{Actor} could in the circumstances be expected to accept the danger	Merkmal	{ExpectedToAcceptDanger}	NCE-R03	is true
the excusing-necessity rule itself; the mitigation tail; (2) error rule	statute	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{CausedDangerHimself}	Boolean	true / false / unknown	Session	{Actor} caused the danger
{ExpectedToAcceptDanger}	Boolean	true / false / unknown	Session	{Actor} could in the circumstances be expected to accept the danger
{SpecialLegalRelationship}	Boolean	true / false / unknown	Session	{Actor} stood in a special legal relationship

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} could in the circumstances be expected to accept the danger and ({Actor} caused the danger or {Actor} stood in a special legal relationship).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[CounterException]	ExpectedToAcceptDanger, CausedDangerHimself, SpecialLegalRelationship	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (NCE-P0)	[CounterException]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

{Actor}

{CausedDangerHimself}

{ExpectedToAcceptDanger}

{SpecialLegalRelationship}

↓

PHASE 2: evaluate act / intermediate computables

↓

PHASE 3: evaluate the objective conditions

[CounterException] = ExpectedToAcceptDanger is true and (CausedDangerHimself is true or SpecialLegalRelationship is true)

↓

VERDICT (PrimeRule)

[CounterException] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

[CounterException] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [CounterException] depends on ; none refer back to [CounterException]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{CausedDangerHimself}	Element/Datum: {Actor} caused the danger.?	Boolean
Q3	Session	{ExpectedToAcceptDanger}	Element/Datum: {Actor} could in the circumstances be expected to accept the danger.?	Boolean
Q4	Session	{SpecialLegalRelationship}	Element/Datum: {Actor} stood in a special legal relationship.?	Boolean

FLAGS

TRANSFORMATION (PROMINENT) §35 as enacted excuses necessity acts protecting oneself, a relative or a close person; the markup strikes the excuse itself and keeps its limiting sentence, repurposed per the annotation as the general counter-exception: the §32, §34 and §228 exceptions do not avail an actor expected to accept the danger, in particular one who caused it or who stands in a special legal relationship. Like §13 and §157, this is authored architecture, disclosed as such.

EFFECT ON THE MASTER RULE {ExceptionActApplies} in the §13 master rule resolves as: an exception scope holds and [CounterException] does not. The special-legal-relationship limb carries the duty-bearer logic: an actor whose role obliges it to bear the danger cannot invoke the exceptions.

EVALUATIVE RESIDUE “could be expected to accept the danger” is a normative threshold; the two named cases decide cleanly, the general clause escalates.

TREATMENT §35 is Operomise-tagged; §33 and §36 are Excluded.

SynapseLayer operome extraction · Lisbon, 10 June 2026